

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Mandate After Rehearing Denial

Basis and date of issuance

Issued July 8, 2026.

The court entered its opinion and judgment on June 15, 2026. Blue Cedar Compliance, Inc. filed a timely petition for panel and en banc rehearing on June 25. The court denied that petition on July 1, leaving the opinion and judgment unchanged. Seven calendar days have elapsed from the denial order, and the clerk has entered an order releasing mandate. No stay or later direction on the docket withholds issuance.

The clerk therefore issues the June 15 opinion and judgment as the mandate of this court on July 8 under Federal Rule of Appellate Procedure 41. The timely rehearing petition made the denial order, rather than expiration of the original fourteen-day period, the event controlling this date. Issuance records the effect of the existing disposition and does not decide a new question, revise a factual statement, or add a condition to the remand.

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Disposition transmitted

The mandate AFFIRMS the district court's December 1, 2025 order insofar as it narrowly excluded the materially new subject in Tessa Wynn's late declaration under Rules 26 and 37. Wynn's timely disclosed comparator testimony remains unaffected. The mandate VACATES the December 19 summary judgment for Blue Cedar on Benton's Title VII retaliation claim and REMANDS that claim for further proceedings consistent with the June 15 opinion.

The appellate court makes no finding that Benton will prevail, that any witness is credible, or that retaliation occurred. The district court retains responsibility for proceedings within the remand and for evidentiary matters not resolved by the opinion. The clerk shall transmit a certified copy of this mandate, the opinion, and the judgment to the district clerk and serve notice on appellate counsel. The rehearing petition and July 1 denial remain part of the appellate docket and explain the July 8 issuance date.